

SENATE BILL 1369

By Watson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 33; Title 68; Title 71 and Chapter 985 of the
Public Acts of 2024, relative to certificates of need.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 985 of the Public Acts of 2024, is amended by deleting SECTION 22 and substituting:

SECTION 22. Tennessee Code Annotated, Section 68-11-1602(10)(B), is amended by adding the following as a new subdivision:

() An acute care hospital;

SECTION 23. Tennessee Code Annotated, Section 68-11-1602, is amended by adding the following as a new subdivision:

() "Acute care hospital" means a hospital with a primary focus on patients with an average length of stay of twenty-five (25) days or less;

SECTION 24. Tennessee Code Annotated, Section 68-11-1607, is amended by adding the following as a new subsection:

() This part does not require a certificate of need to establish or operate an acute care hospital.

SECTION 25. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes:

(1) Sections 11 and 18-21 take effect July 1, 2024, the public welfare requiring it;

(2) Sections 1 and 2 take effect July 1, 2025, the public welfare requiring it;

(3) Sections 3-8 take effect December 1, 2025, the public welfare requiring it;

(4) Sections 9, 10, and 12-15 take effect December 1, 2027, the public welfare requiring it;

(5) Sections 16 and 17 take effect December 1, 2029, the public welfare requiring it; and

(6) Sections 22-24 take effect July 1, 2028, the public welfare requiring it.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.